

- eighty-six of the Local Government Act, 1929, and in the General Exchequer Contribution for Scotland under paragraph (c) of subsection (3) of section fifty-three of the Local Government (Scotland) Act, 1929, shall be respectively the sum of five million three hundred and fifty thousand pounds and the sum of eight hundred and fifty thousand pounds; and
- (b) the amounts to be paid under paragraph (b) of subsection (1) of section eighty-seven of the Local Government Act, 1929, and under paragraph (b) of subsection (1) of section fifty-four of the Local Government (Scotland) Act, 1929, respectively out of the Road Fund towards the Contributions aforesaid shall be the same as were payable in respect of each year in the first fixed grant period.

towards,  
General  
Exchequer  
Contribu-  
tions for  
England  
and Scot-  
land in  
second fixed  
grant  
period.  
19 & 20  
Geo. 5. c. 17.  
19 & 20  
Geo. 5. c. 25.

2. This Act may be cited as the Local Government (General Exchequer Contributions) Act, 1933.

Short title.

## CHAPTER 9.

An Act to provide for the winding up of insolvent assurance companies, and for purposes connected with the matter aforesaid. [29th March 1933.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. A petition for the winding up of an assurance company on the ground that it is unable to pay its debts within the meaning of sections one hundred and sixty-eight and one hundred and sixty-nine of the Companies Act 1929 may, with the leave of the court, be presented by the Board of Trade.
- 2.—(1) If it appears to the Board of Trade that there is reasonable ground for believing that an assurance company is insolvent, the Board may, by notice in writing served upon the company, require to be furnished

Power of  
Board of  
Trade to  
petition on  
ground of  
insolvency.  
19 & 20  
Geo. 5. c. 23.  
Provisions  
as to com-  
panies of  
doubtful  
solvency.

to them within such time as may be specified in the notice, such explanations, information, accounts, balance sheets, abstracts, and statements, as they consider to be necessary for determining whether the company is, or was, at such date (not earlier than the close of the period to which the last deposited accounts and balance sheet of the company relate) as may be specified in the notice, insolvent; and may, by the notice, require any such explanations, information, accounts, balance sheets, abstracts, or statements to be signed by such number of the directors and by such officers of the company, and to be accompanied by such copies of documents, as may be specified in the notice, and to be certified as correct by an auditor approved by the Board, or by an actuary so approved, or by both such an auditor and such an actuary.

(2) If after such a notice as aforesaid has been served upon an assurance company the company does not, before the expiration of the time limited by the notice, comply with all the requirements of the notice, other than such requirements, if any, as may have been withdrawn by the Board of Trade, the Board may apply to the court, and upon any such application the court may, unless the company satisfies the court that the requirements are unreasonable, order the company and any director or officer of the company who is named in the order, to comply with all or any of those requirements, subject to such modifications, if any, and within such time, as may be specified in the order.

(3) If default is made by an assurance company or by any such director or officer as aforesaid in complying with an order of the court made under the last foregoing subsection, the default shall be a ground upon which the company may, on the petition of the Board of Trade presented by leave of the court, be wound up by the court in accordance with the provisions of the Companies Act 1929; and upon application being made by the Board in that behalf, the court, unless it is satisfied by the company that no such default has been made, may (without prejudice to any other power of the court) by order—

(a) grant leave to the Board to present a petition for the winding up of the company upon the ground of the default; or

- (b) direct the Board to appoint one or more inspectors to investigate the affairs of the company and to report thereon in such manner as the Board may require, and give such directions as to the payment of the costs of, and incidental to, the investigation as to the court may seem just.

3.—(1) Rules made under section three hundred and five of the Companies Act 1929 may regulate the procedure and the practice to be followed in the case of proceedings under this Act. Supple-  
mental  
provisions.

(2) Where an order is made under the last foregoing section directing the Board of Trade to appoint an inspector, the provisions of subsections (3), (4), and (5), of section one hundred and thirty-five of the Companies Act 1929 shall apply with respect to any inspector so appointed in like manner as they apply to inspectors appointed under that section.

(3) In any proceedings upon a petition to wind up an assurance company presented under this Act, evidence that the company was insolvent at the close of the period to which the last deposited accounts and balance sheet of the company relate, or at any date specified in a notice served under the last foregoing section, shall be evidence that the company continues to be unable to pay its debts, unless the contrary is proved.

4. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say— Definitions.

“ Assurance Company ” means an assurance company within the meaning of the Assurance Companies Act 1909 being a company which may be wound up by the court under the provisions of the Companies Act 1929; 9 Edw. 7.  
c. 49.

“ Court ” has the meaning assigned to it by section three hundred and eighty of the Companies Act 1929;

“ Deposited accounts and balance sheet ” means, in relation to any assurance company, the accounts and balance sheet prepared by the company for the purposes of section four of the Assurance

Companies Act 1909 and deposited at the Board of Trade in pursuance of the requirements of section seven of that Act;

“Insolvent” means, in relation to an assurance company at any relevant date, that if proceedings had been taken for the winding up of the company the court could, in accordance with the provisions of sections one hundred and sixty-eight and one hundred and sixty-nine of the Companies Act 1929, hold, or have held, that the company was at that date unable to pay its debts.

Short title  
and extent.

5.—(1) This Act may be cited as the Assurance Companies (Winding up) Act 1933.

(2) This Act shall not extend to Northern Ireland.

---

## CHAPTER 10.

An Act to authorise the prohibition of the importation of Russian goods.

[13th April 1933.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Power to  
prohibit  
the impor-  
tation of  
Russian  
goods.

1.—(1) It shall be lawful for His Majesty by proclamation to prohibit the importation into the United Kingdom of all goods whatsoever grown, produced or manufactured in the Union of Soviet Socialist Republics, or of any class or description of such goods specified in the proclamation.

(2) Goods prohibited to be imported by virtue of a proclamation under this Act shall be deemed to be included among the goods enumerated and described in the Table of Prohibitions and Restrictions Inwards contained in section forty-two of the Customs Consoli-